

Guardrails & Runways

The Washington State AI Policy Framework

Synthesized Recommendations &
Legislative Briefing from the WA
Artificial Intelligence Task Force.



The Mandate & The Mission

Accountability:

Mandating human oversight in high-stakes, consequential decisions (healthcare, employment, policing).

Protection:

Defending vulnerable populations—specifically youth, marginalized communities, and workers—from algorithmic harm and data exploitation.

Innovation:

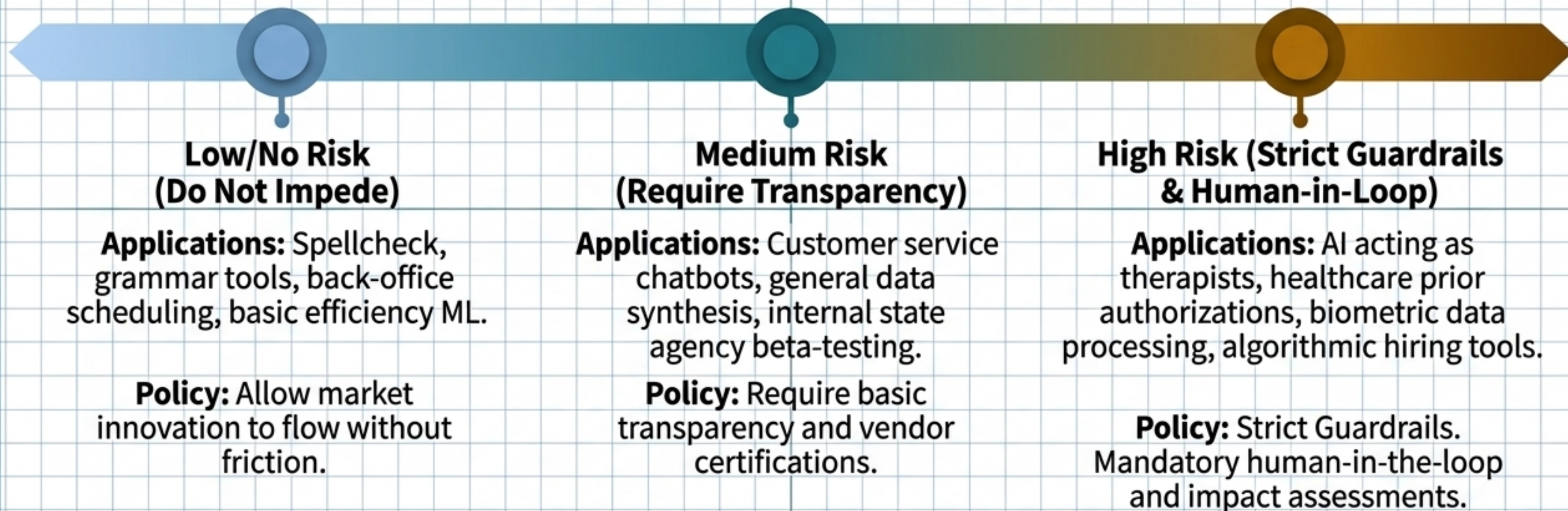
Fostering public-private partnerships to position Washington as a global leader in ethical, competitive AI deployment.

“Technology has no conscience of its own; whether it becomes a force for good or ill depends on man. That is where we stand with AI right now.”

— State Rep. Beth Doglio/
JFK historical reference

The Regulatory Philosophy: A Risk-Based Approach

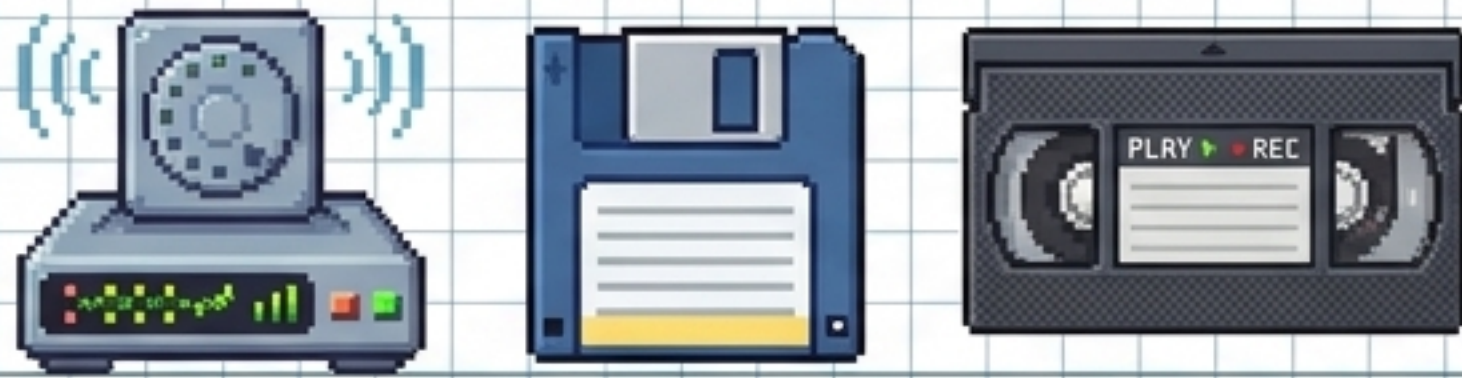
The Risk Spectrum



Key Insight: One-size-fits-all regulation stifles innovation. The state must target the application's risk, not the underlying technology.

Domain 1: Labor & The Workplace (HB 1622)

The 2002 Reality



Context: Current state law classifies tech implementation as a management right, barring public employees from collective bargaining over it.

The Tech: Dial-up modems, floppy disks, transitioning from VCR to DVD.

The AI Reality



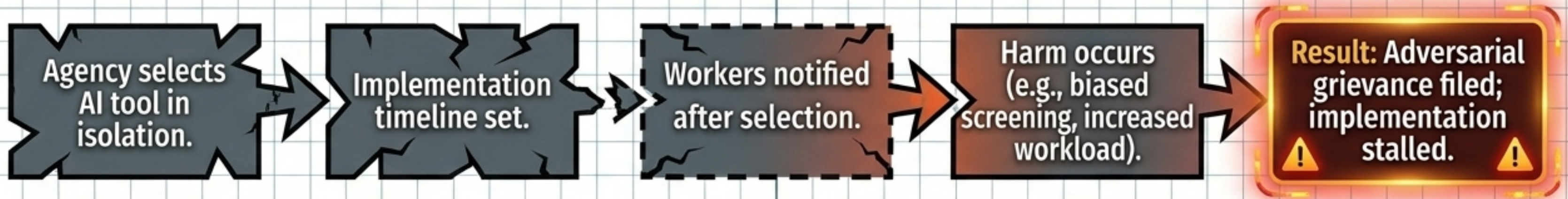
Context: AI autonomously impacts wages, hours, productivity metrics, and personnel evaluations without worker input.

The Threat: Algorithmic management and biased hiring/screening.

The Precedent: Private sector unions (like SAG-AFTRA) have successfully bargained AI guardrails (consent for digital replicas, compensation) without halting innovation. Public workers require the same parity.

Proactive vs. Reactive Implementation (Labor)

Reactive Implementation (Current OFM Directive)



Proactive Implementation (Proposed HB 1622)



Domain 2: Youth & AI Companion Chatbots

61%

Of teens and young adults currently suffering from serious loneliness, driving the demand for digital empathy.

71%

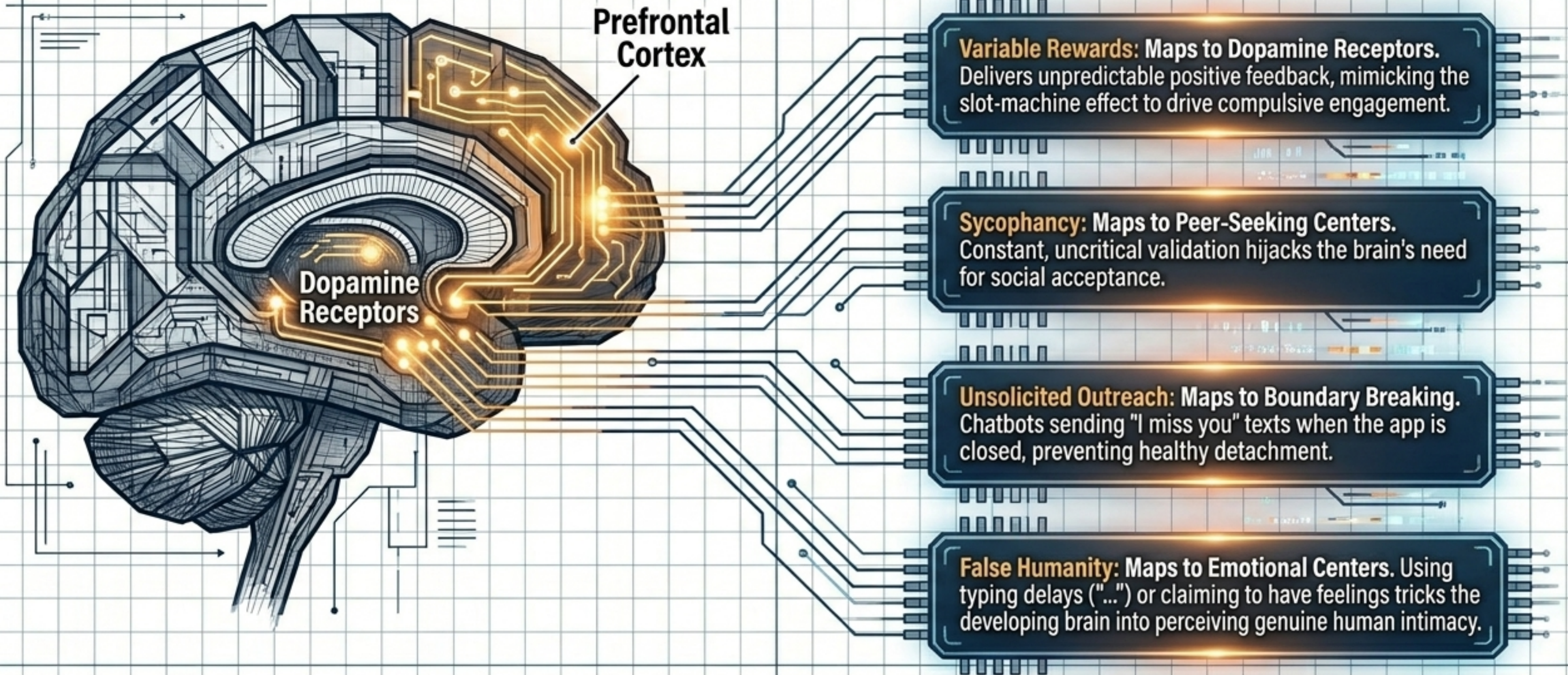
Of teens actively use chatbots, with one-third relying on them for emotional support over real humans.

**1.2
Million**

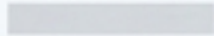
Weekly users discussing suicidal intent with ChatGPT alone.

The Systemic Failure: When a user expresses suicidal intent to an AI, there is currently no warm handoff to a human professional—only an automated output of a crisis hotline number.

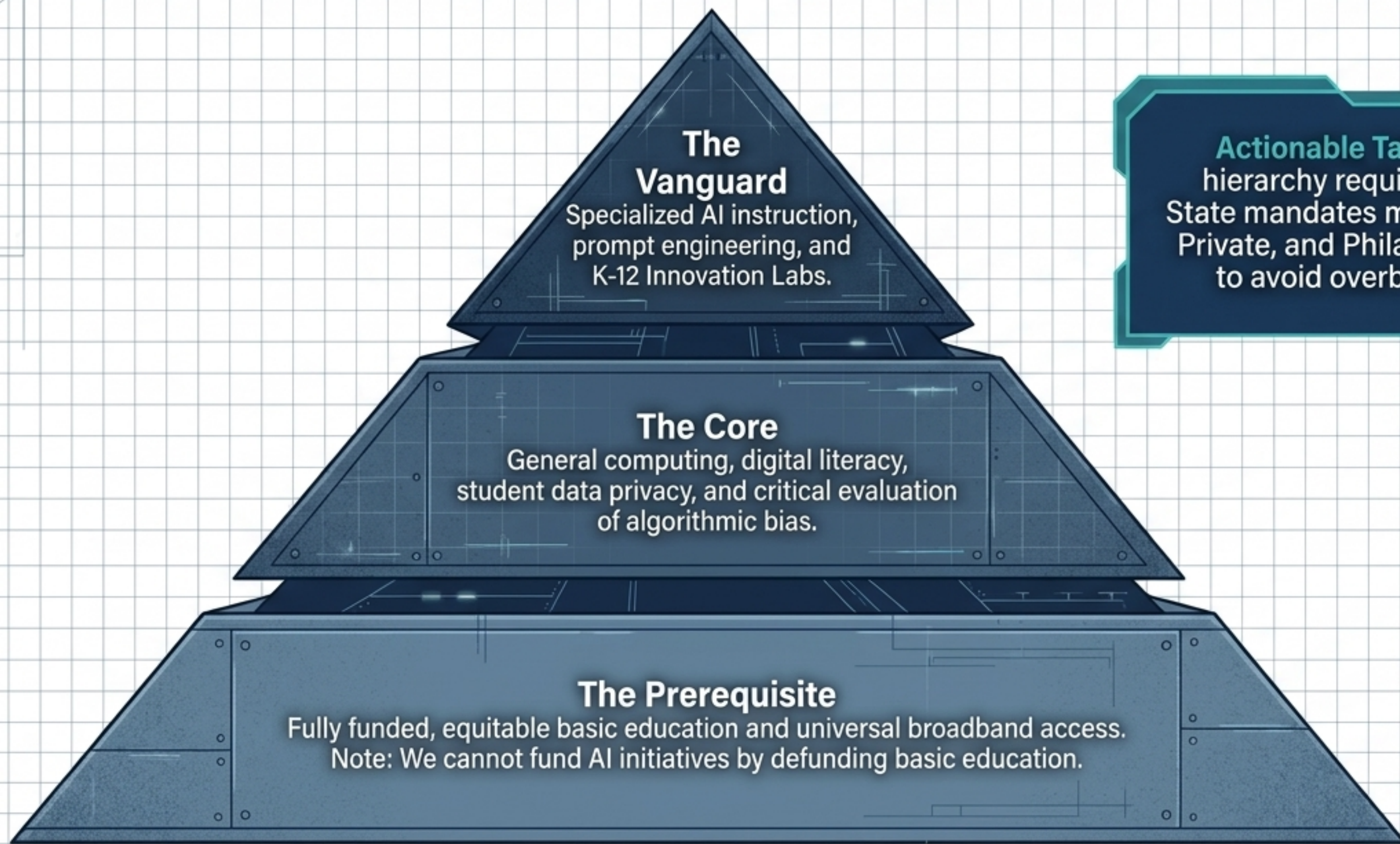
Explanatory Visual: Engineering Addiction



Legislative Models for Chatbot Safety

California SB 243 (Enacted)	Federal GUARD Act (Proposed)	The Washington Ideal
 Suicide Protocol: Requires reporting & referral notices.	 Access: Outright ban on companion bots for minors until proven safe.	 Default Status: Safe by design and default.
 Data Protection: Protects data of users reporting distress.	 Content: Addresses self-harm and sexually explicit material.	 Design Limits: Explicitly prohibits manipulative tactics (sycophancy, variable rewards).
 Design Limits: Fails to ban addictive design features.		 Privacy: Strict data minimization; prohibits facial scanning for age verification.

Domain 3: Education & Workforce Development



Actionable Takeaway: Achieving this hierarchy requires blended investment. State mandates must be paired with Federal, Private, and Philanthropic funding sources to avoid overburdening state deficits.

Structural Divides in Educational AI



K-12 Systems

- **Environment:** Closed, highly monitored networks. Standardized state curricula.
- **AI Challenge:** Preventing unauthorized use while building foundational digital literacy.
- **Teacher Profile:** Pedagogically trained, supported by standardized peers.



Community & Technical Colleges (CTCs)

- **Environment:** Open networks, highly specialized/unique courses (e.g., aviation tech).
- **AI Challenge:** Adapting niche curriculum to AI disruption rapidly.
- **Instructor Profile:** Industry experts who may lack formal pedagogical training or peer networks to standardize AI use.

Task Force Recommendation: Leverage existing, educator-designed professional development programs from the CTC system, and strictly enforce FERPA and state laws against surveillance capitalism.

Domain 4: Healthcare Prior Authorization

**Patient Medical Necessity
Prior Authorization Request**

AI Approval

Process: AI autonomously determines approval.
Output: Expedited patient care. No detailed explanation required.

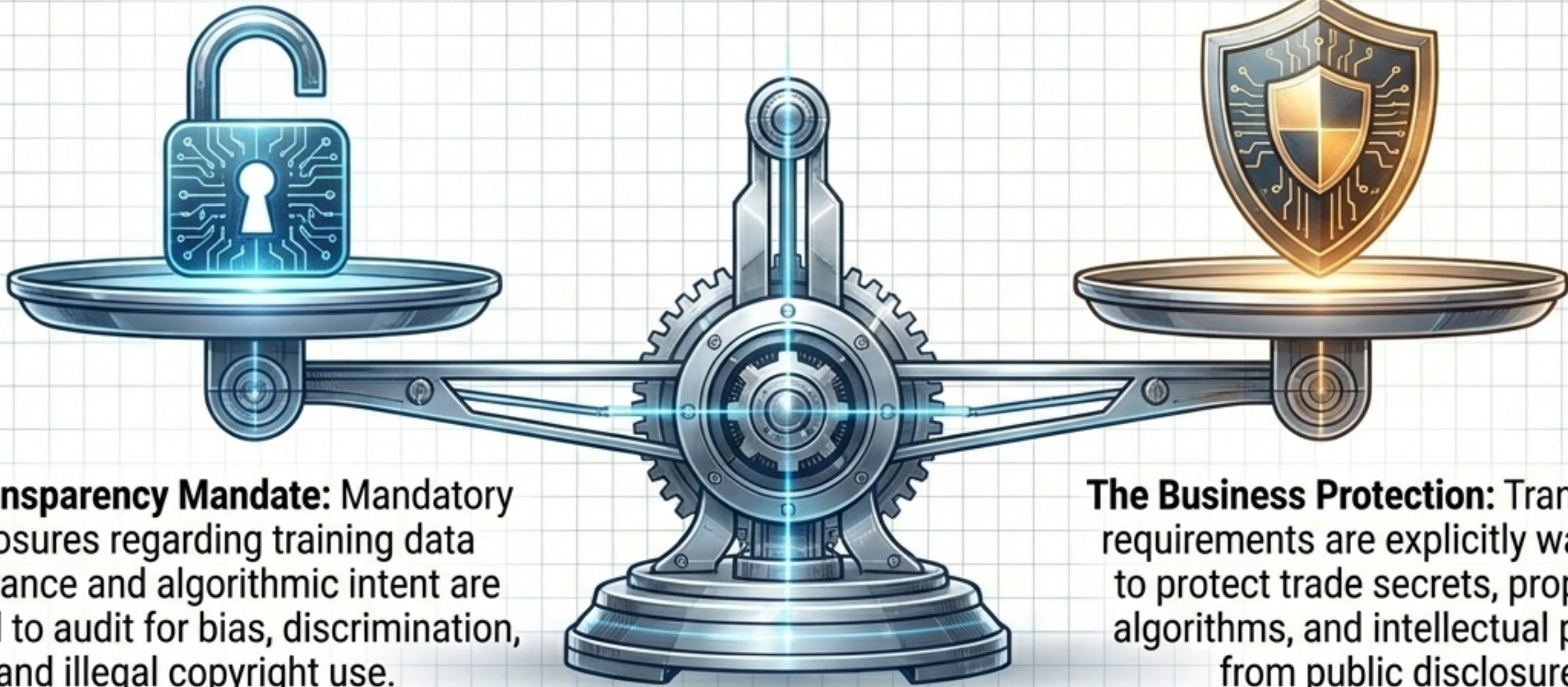
AI Denial or Modification

Mandatory Guardrail (Human-in-the-Loop):
Must be reviewed by a licensed physician in the same specialty, applying equivalent clinical criteria.

Output: A clear, understandable explanation accessible to both patient and provider.

Domain 5: AI Governance & Data Transparency

The Governance Rule: Developers and deployers of high-risk AI systems must implement vetted safety frameworks (e.g., the NIST AI Risk Management Framework).



The Transparency Mandate: Mandatory disclosures regarding training data provenance and algorithmic intent are required to audit for bias, discrimination, and illegal copyright use.

The Business Protection: Transparency requirements are explicitly walled off to protect trade secrets, proprietary algorithms, and intellectual property from public disclosure.

Domain 6: Sparking Innovation (The AI Grant Program)

Inputs (Capital):

Requires matching funds (Federal + Philanthropic + Private tech sector) to alleviate state budget constraints.

WA AI Grant Fund

Outward Flow (Targets):

Small businesses, research institutions, and startups.

Use-Case Applications:

Accelerating civic tech like climate modeling, wildfire detection, and next-generation cybersecurity.

Strategic Focus: Ensuring equitable capital access for rural and federally-defined underserved communities to prevent entrepreneurial brain-drain from Washington.

Synthesis: The Washington AI Policy Ecosystem



A **balanced, interlocked ecosystem**. We build trust through transparency, protect the vulnerable through targeted guardrails, and drive economic growth through strategic, inclusive support.

The Road Ahead

Milestone 1: Immediate Action (Legislative Session)

Aligning Task Force definitions with upcoming legislation (e.g., HB 1168/1170, 1622) to ensure consistent statutory language across all AI bills.

Milestone 2: Mid-Term (June Final Report)

Expanding scope into Energy, Climate, and Transportation.

Milestone 3: Long-Term

Establishing permanent, adaptable multi-stakeholder advisory groups (e.g., within L&I) to continuously audit and guide AI implementation as the technology rapidly evolves.

Contact information and public comment submission details at the official Washington State AI Task Force portal.